

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement is made on 14 February 2024 between Helios Data AG, Bahnhofstrasse 21, 8001 Zurich, and Brandt Ventures GmbH, Rosenthaler Strasse 40, 10178 Berlin (each a Party).

1. Confidential Information

Confidential Information means any non-public technical, commercial, or financial information disclosed by one Party to the other, whether orally or in writing, that is marked confidential or would reasonably be understood to be confidential.

2. Obligations

Each Party shall keep the other Party's Confidential Information strictly confidential and shall not disclose it to any third party without prior written consent, except to employees and advisers who need to know it and are bound by equivalent obligations.

3. Duration

The obligations in this Agreement survive for a period of five (5) years from the date of disclosure, regardless of whether the discussions between the Parties result in a further agreement.

4. Exclusions

This Agreement does not apply to information that is or becomes publicly available through no breach by the receiving Party, or that was lawfully known to the receiving Party before disclosure.

5. Jurisdiction

The courts of Frankfurt am Main shall have exclusive jurisdiction over any dispute arising out of this Agreement.